STANDARD OPERATING PROCEDURE			G-5300
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 12/04/06	DATE REVISED **03/25/25**	DATE REVIEWED 03/24/24
		APPROVED: *GREG LONDON*		
CHAPTER TITLE GENERAL		RESOURCES FOP CONTRACT NRS 23-1728		
SUBJECT PERSONNEL FILES		CROSS REFERENCE		

I. Purpose:

The purpose of this policy is to establish the guidelines for maintaining personnel files.

II. Policy:

The Sarpy County Sheriff's Office shall maintain a personnel file for each employee. Personnel files contain the following information: payroll status, assignments, commendations, disciplinary actions, etc. The Sheriff's Office shall maintain only one personnel file for each employee. The Sheriff's Office may maintain other files regarding employees (e.g. training files, performance files, etc.), but only documentation contained within the personnel file may be used during disciplinary action. No adverse information shall be placed in an employee's personnel file without the signature of the employee verifying knowledge of the existence of such information.

III. Procedures:

A. Access to Personnel Files: Due to the confidential nature of the information contained in personnel files, access shall be strictly regulated.

1. Personnel files are not public documents and may only be accessed by the Sheriff, his designee, or the employee himself or herself.

2. An employee may examine his or her personnel file. He or she shall submit a Personnel Information Request form to the Administrative Commander who shall schedule a proper time during normal business hours to view the file. Questions regarding the file arising from the review shall be addressed with the Administrative Commander immediately. Employees shall be allowed to make copies of any items contained within the file.

3. Original hiring interview comments and the pre-employment background information shall not be shown to employees.

4. The Merit Commission or Sarpy County Personnel Board, when conducting business relating to its official duties, shall have the right to inspect the personnel file of any employee who has filed a grievance. The inspection of the records shall take place at the Sheriff's Office during normal business hours.

5. A Personnel File Log form shall be maintained for each personnel file. Each time a personnel file is opened, for any reason, the employee opening the file shall note the date and time and sign the log form.

B. **Access to Personnel File after Termination/Resignation/Retirement:** Within six months of ending employment with the Sheriff's Office a past employee may request a copy of the contents of his or her personnel file. After this time limit the file shall not be available to that employee, his or her designee or any outside agency or person except under compelling circumstances or court order. Prospective employers shall only be provided the following personnel information regarding past employees of the Sheriff's Office (this information shall be sent to the prospective employer in writing and a copy of the correspondence shall be included in the past employee's file):

1. Date of hire.
2. Date of termination/resignation/retirement.
3. Is former employee eligible for rehire.
4. Rank and rate of pay, if known.

C. **Removal of Documentation:** The following procedures shall be followed regarding the removal of documentation from a personnel file.

1. Disciplinary Action: If an employee receives a disciplinary action letter, the letter shall be inserted into the employee's personnel file.

a) Documentation for disciplinary action may be removed from an employee's file after the time periods listed:

(1)	Counseling:	90 Days
(2)	Admonishment:	180 Days
(3)	Reprimand:	18 Months
(4)	Suspension:	4 Years
(5)	Demotion:	Permanent
(6)	Termination:	Permanent

b) It shall be the responsibility of an Administrative Commander or Professional Standards Division designee to remove documentation

of disciplinary action after the listed time period. An Administrative Commander or Professional Standard designee shall remove the documentation and place it in the "Removed Disciplinary Action" file.

c) If an employee has documentation for a disciplinary action in his or her personnel file and is disciplined for an additional, similar offense(s), the previous documentation shall remain in the personnel file until the subsequent action for a similar offense(s) may be removed.

2. If an employee believes there is documentation is his or her personnel file that should not be included, he or she may bring the matter to the attention of the Sheriff or the Administrative Commander. The Sheriff or Administrative Commander may remove and destroy the documentation.

a) If the Sheriff or Administrative Commander determines the challenged documentation shall remain in the personnel file, the employee may respond in writing to the documentation. Such written response shall be kept in the employee's personnel file as long as the challenged comment or information remains in the file.

D. **Personnel Information Requirements:** Employees are required to provide and maintain current personal information with the Sheriff's Office.

1. Employees shall report all changes in marital status, such as marriage, divorce, births/deaths of dependents to the Office Manager, as soon as reasonably possible.

2. The employee's residence shall be within a distance that will allow him or her, under normal weather conditions, to arrive at the Sarpy County Sheriff's Office within thirty (30) minutes.

3. All employees who change names, addresses, and/or telephone numbers are responsible for the immediate completion of a Change of Name/Address/Telephone Number form. Forms shall be submitted to the Office Manager who shall ensure the personnel file and official records are updated.

E. **Personnel Information Requests:** When any employee receives a request for the home address and/or telephone number of any personnel, the individual making the request shall be advised that the information cannot be provided. The employee receiving the request shall obtain the requester's name and telephone number and then contact the employee and advise him or her of the request and provide the individual's name and telephone number to allow the employee to contact the requester.